

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600306	ORELLANA VS EDGAR LADISLAO BRACAMONTE PORTILLO	DEMURRER ON COMPLAINT FOR AUTO (OVER \$35,000) OF EFRAIN ORELLANA AS TO CAUSE(S) OF ACTION ENTIRE ACTION BASED ON STATUTE OF LIMITATIONS

Tentative Ruling:

The meet-and-confer requirement has been met.

Plaintiff appears to assert that evidence exists that Plaintiff submitted the complaint in November, not January 5, 2026. The court had previously denied Plaintiff's motion to nunc pro tunc and deem the complaint filed as of November 15, 2025. However, the denial was without prejudice. The hearing is continued to October 6, 2026, at 8:30 a.m. to allow Plaintiff to bring another motion nunc pro tunc to provide evidence that Plaintiff submitted the complaint to the court in November.

Moving party is ordered to give notice.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600721	GEORGE VS DOORDASH, INC.	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

The court may strike any irrelevant, false, or improper matter inserted in any pleading; or, strike all or any part of any pleading not drawn or filed in conformity with the laws of this state. (Code Civ. Proc., §§ 435, subd. (b)(1), 436.)

A motion to strike is the proper vehicle to attack a claim for punitive damages. (Code Civ. Proc., §§ 435-436; *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) To set forth a claim for punitive damages, Plaintiff must allege ultimate facts showing oppression, fraud or malice. (Civil Code § 3294.) Mere negligence, even gross negligence, is not sufficient to justify an award of punitive damages. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894-895; *Moody v. McDonald* (1854) 4 Cal. 297, 299.) The current definitions of "malice" and "oppression" were changed by the 1987 amendments to Civil Code §3294, to incorporate "despicable conduct." The amendments narrowed the definitions so that punitive damages will only be awarded to punish conduct that is so "vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down on and despised by ordinary decent people."